

18CV05728 Mark Signa et al vs The Regents of the University of CA et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-05-29

Motion: Motions to Seal; Motion for Consolidation; Motion for Summary Judgment

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Tentative Ruling: Mark Signa et al vs The Regents of the University of CA et al

Case Number

18CV05728

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 05/29/2026 - 10:00

Nature of Proceedings

Motions to Seal; Motion for Consolidation; Motion for Summary Judgment

Tentative Ruling

(1) For the reasons stated herein, the motion of defendant The Regents of the University of California to seal exhibits in support of defendant's motion for summary judgment or, in the alternative, summary adjudication against the complaint of Ryan Smith is granted, in part as to exhibits 3, 17, 18, 19, 20, and 21, only. Except as herein granted, the motion is otherwise denied.

(2) On or before 5 p.m. on June 3, 2026, defendant The Regents of the University of California shall file a public version of the amended appendix of evidence lodged conditionally under seal on February 25, 2026, in support of defendant's motion for summary judgment, or in the alternative, summary adjudication against the complaint of Ryan Smith, that redacts exhibits 3, 17, 18, 19, 20, and 21, only. No other exhibit, or material contained in any other exhibit, apart from exhibits 3, 17, 18, 19, 20, and 21, shall be redacted from that public version of defendant's amended appendix of evidence. Further, exhibits 3, 17, 18, 19, 20, and 21 to the amended appendix of evidence lodged by defendant on February 25, 2026, shall remain lodged under seal pending the determination of defendant's motion for summary judgment, or in the alternative, summary adjudication against the complaint of Ryan Smith.

(3) For the reasons stated herein, the motion of defendant The Regents of the University of California to seal exhibits in support of defendant's motion for summary judgment or, in the alternative, summary adjudication against the complaint of Mark Signa, is denied. On or before 5 p.m. on June 3, 2026, defendant shall file unsealed, the amended appendix of evidence lodged conditionally under seal by defendant on February 25, 2026, in support of defendant's motion, without any redactions to any exhibit or material contained in any exhibit.

(4) For the reasons stated herein, the motion of defendant The Regents of the University of California to seal exhibits in support of defendant's motion for summary judgment or, in the alternative, summary adjudication against the complaint of Jonathan Lee Reyes, is denied. On or before 5 p.m. on June 3, 2026, defendant shall file unsealed, the appendix of evidence lodged conditionally under seal on February 25, 2026, in support of defendant's motion, without any redactions to any exhibit or material contained in any exhibit.

(5) For the reasons stated herein, the motion of defendant The Regents of the University of California to seal exhibits in support of defendant's motion for summary judgment or, in the alternative, summary adjudication against the complaint of Michael Little and Tiffany Little is granted as to exhibits 4, 6 through 13, 16 through 25, and 30 through 37, only, to the amended appendix of evidence in support of defendant's motion as to plaintiff Tiffany Little's complaint; and as to exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29, only, to the amended appendix of evidence in support of defendant's motion as to plaintiff Michael Little's complaint. Except as herein granted, the motion is otherwise denied.

(6) On or before 5 p.m. on June 3, 2026, defendant The Regents of the University of California shall file a public version of the amended appendix of evidence lodged conditionally under seal on February 25, 2026, in support of defendant's motion for summary judgment or, in the alternative, summary adjudication in the Tiffany Little matter, that redacts exhibits 4, 6 through 13, 16 through 25, and 30 through 37, only. No other exhibit, or material contained in any exhibit, apart from exhibits 4, 6 through 13, 16 through 25, and 30 through 37, shall be redacted from that public version of defendant's amended appendix of evidence. Further, exhibits 4, 6 through 13, 16 through 25, and 30 through 37 to the amended appendix of evidence lodged by defendant on February 25, 2026, shall remain lodged under seal pending the determination of defendant's motion for summary judgment or, in the alternative, summary adjudication as to plaintiff Tiffany Little's complaint.

(7) On or before 5 p.m. on June 3, 2026, defendant The Regents of the University of California shall file a public version of the amended appendix of evidence lodged conditionally under seal on February 25, 2026, in support of defendant's motion for summary judgment or, in the alternative, summary adjudication against Michael Little's complaint, that redacts exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29, only. No other exhibit, or material contained in any exhibit, apart from exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29, shall be redacted from that public version of defendant's amended appendix of evidence. Further, exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29 to the amended appendix of evidence lodged by defendant on February 25, 2026, shall remain lodged under seal pending the determination of defendant's motion for summary judgment or, in the alternative, summary adjudication against plaintiff Michael Little's complaint.

(8) For the reasons stated herein, the motion of defendant The Regents of the University of California to seal exhibits in support of defendant's motion for summary judgment or, in the alternative, summary adjudication against the complaint of plaintiff Matthew Stern is granted as to exhibits 3, 4, 7 through 9, and 16, only. Except as herein granted, the motion is otherwise denied.

(9) On or before 5 p.m. on June 3, 2026, defendant The Regents of the University of California shall file a public version of the amended appendix of evidence lodged conditionally under seal on February 25, 2026, in support of defendant's motion for summary judgment, or in the alternative, motion for summary adjudication in the Matthew Stern matter, that redacts exhibits 3, 4, 7 through 9, and 16, only. No other exhibit, or material contained in any other exhibit, apart from exhibits 3, 4, 7 through 9, and 16, shall be redacted from that public redacted version of defendant's amended appendix of evidence. Further, exhibits 3, 4, 7 through 9, and 16 to the amended appendix of evidence lodged by defendant on February 25, 2026, shall remain lodged under seal pending the determination of defendant's motion for summary judgment, or in the alternative, summary adjudication in the Matthew Stern matter.

(10) For the reasons stated herein, the motion of defendant The Regents of the University of California's motion for summary judgment, or in the alternative, motion for summary adjudication against plaintiff Ryan Smith's complaint is denied.

(11) For the reasons stated herein, the motion of plaintiffs Mark Signa, Michael Little, Tiffany Little, Matthew Stern, and Jonathan Reyes to consolidate cases for all purposes including trial is granted. This case no. 18CV05728, shall be consolidated with Santa Barbara Superior Court case no. 19CV01431 entitled Michael Little, et al. v. The Regents of the University of California, et al., Santa Barbara Superior Court case no. 19CV04418 entitled Matthew Stern v. The Regents of the University of California, et al., and Santa Barbara Superior Court case no. 19CV02586 entitled Jonathan Lee Reyes v. The Regents of the University of California, et al., for trial. This case is designated as the lead case. The parties shall file all documents in the lead case. The parties are ordered to appear at the hearing to discuss future proceedings in accordance with this ruling.

Background:

On November 21, 2018, plaintiff Mark Signa (Signa) filed their original complaint in this case against defendants The Regents of the University of California (the Regents) and the University of California Santa Barbara Police Department (UCSB-PD) Chief Dustin Olson (Olson), asserting four causes of action: (1) violation of Title 42 United States Code section 1983 – denial of first amendment rights; (2) violation of the California Whistleblower Protection Act; (3) negligent infliction of emotional distress; and (4) violation of Labor Code section 1102.5. Briefly, Signa alleges in their complaint that they have been employed as a police officer by the Regents since 1990, and that the Regents and UCSB-PD retaliated against Signa after Signa voiced concerns about purported misconduct within the UCSB-PD.

On February 4, 2019, Signa filed their operative first amended complaint (the Signa FAC), alleging two causes of action: (1) violation of the California Whistleblower Protection Act and (2) violation of Labor Code Section 1102.5.

On February 22, 2019, the Regents and Olson filed an answer to the Signa FAC, generally denying its allegations and asserting twenty-seven affirmative defenses.

On May 22, 2019, the court ordered a stay of this case pending the exhaustion of administrative remedies by Signa. The court lifted the stay on January 21, 2021.

On September 17, 2021, the court adopted its tentative ruling on a motion of the Regents to transfer and consolidate with this case (the Signa Action) for pre-trial purposes only, the following matters: (1) Santa Barbara Superior Court case no. 19CV01431 entitled Michael Little, et al. v. The Regents of the University of California, et al. (the Little Action); (2) Santa Barbara Superior Court case no. 19CV04418 entitled Matthew Stern v. The Regents of the University of California, et al. (the Stern Action); (3) Santa Barbara Superior Court case no. 19CV02586 entitled Jonathan Lee Reyes v. The Regents of the University of California, et al. (the Reyes Action); (4) Santa Barbara Superior Court case no. 19CV01625 entitled John Doe v. The Regents of the University of California Santa Barbara, et al. (the Smith Action); and (5) Santa Barbara Superior Court case no. 21CV01256 entitled Ryan Hashimoto v. The Regents of the University of California, et al. (the Hashimoto Action).

On February 26, 2025, the court entered judgment in favor of the Regents, the UCSB-PD, and the University of California Santa Barbara, and against plaintiff Ryan Hashimoto, as to the complaint filed in the Hashimoto Action.

Relevant here, on January 22, 2026, the Regents filed a motion for summary judgment, or in the alternative, motion for summary adjudication against the Signa FAC (the Regents Signa Motion), and separately filed a motion for summary judgment, or in the alternative, motion for summary adjudication against the complaint of Matthew Stern (Stern) filed in the Stern Action (the Regents Stern Motion). The Regents Signa Motion and the Regents Stern Motion were calendared for hearing on April 24, 2026.

On January 26, the Regents filed a motion for summary judgment or adjudication against the complaint of plaintiff Tiffany Little (T Little) filed in the Little Action, and separately filed a motion for summary judgment, or in the alternative, motion for summary adjudication against the complaint of plaintiff Michael Little (M Little) in the Little Action (collectively, the Regents Little Motions). The Regents Little Motions were calendared for hearing on May 1, 2026. T Little and M Little have filed opposition to the Regents Little Motions.

On February 10, Olson filed a motion for summary judgment, or in the alternative summary adjudication, against the Signa FAC (the Olson Motion).

On February 11, the Regents filed a motion for summary judgment or adjudication against the complaint filed by plaintiff Ryan Smith (Smith) in the Smith Action (the Regents Smith Motion).

On February 13, the Regents filed a motion for summary judgment or adjudication against the complaint filed by plaintiff Jonathan Lee Reyes (Reyes) in the Reyes Action (the Regents Reyes Motion).

On February 19, defendant David Millard (Millard) filed a motion for summary judgment, or in the alternative summary adjudication, against the complaint filed by Stern in the Stern Action (the Millard Motion.)

The Olson Motion, the Regents Smith Motion, the Regents Reyes Motion, and the Millard Motion were calendared for hearing on May 15, 2026.

On March 16, the Regents filed an ex parte application for an order to set the hearing on the Regents Smith Motion on May 8, 2026, to allow that motion to be heard no later than 30 days before trial. On March 18, the court signed and entered an order granting that application, and moved the hearing on the Regents Smith Motion to May 8, 2026.

On April 3, Stern filed their opposition to the Regents Stern Motion.

On April 11, the court signed, and on April 13 filed, an order approving a stipulation by the parties to continue the hearing on the Regents Stern Motion to May 8, 2026, and the hearing on the Regents Signa Motion to May 15, 2026. The Regents Smith Motion remained calendared for hearing on May 8. The Olson Motion, the Regents Reyes Motion, and the Millard Motion remained calendared for hearing on May 15, 2026.

On April 17, Smith filed their opposition to the Regents Smith Motion.

On April 21, Signa filed their opposition to the Regents Signa Motion.

On April 24, Signa filed opposition to the Olson Motion, Reyes filed opposition to the Regents Reyes Motion, and Stern filed opposition to the Millard Motion.

On May 1, the court issued a minute order (the May 1 Order), continuing the hearing on the Regents Little Motions to June 12, 2026, as a result of the lodging by the Regents of material submitted as a basis for adjudication of those motions conditionally under seal without having filed an appropriate motion for an order placing those materials under seal, or the entry of any such order. The court set a hearing on any motion for an order to file the materials lodged conditionally under seal in support of the Regents Little Motions on May 29, 2026, and a briefing schedule that requires any such motion to be filed and served on or before May 11, among other things.

On May 8, after a hearing, the court issued a minute order (the May 8 Order), continuing the hearing on the Regents Smith Motion to May 29, 2026, and the hearing on the Regents Stern Motion to June 12, 2026, as a result of the lodging by the Regents of material submitted as a basis for adjudication of those motions conditionally under seal without having filed an appropriate motion for an order placing those materials under seal. The May 8 Order also requires that any motion for an order to place under seal the materials lodged by the Regents as a basis for adjudication of the Regents Smith Motion be filed and served on or before May 11, 2026; set a briefing schedule for oppositions and replies as to that motion; and set a hearing on any such motion on May 22, 2026.

As to the materials lodged by the Regents conditionally under seal in support of the Regents Stern Motion, the May 8 Order set a hearing date for any motion to place those materials under seal on May 29, 2026.

On May 11, the Regents separately filed: (1) a motion for an order to file under seal the exhibits lodged by the Regents in support of the Regents Signa Motion (the Signa Motion to Seal); (2) a motion for an order to file under seal the exhibits lodged by the Regents in support of the Regents Reyes Motion (the Reyes Motion to Seal); (3) a motion for an order to file under seal the exhibits lodged by the Regents in support of the Regents Little Motions (the Little Motion to Seal); (4) a motion for an order to file under seal the exhibits lodged by the Regents in support of the Regents Smith Motion (the Smith Motion to Seal); and (5) a motion for an order to file under seal the exhibits lodged by the Regents in support of the Regents Stern Motion (the Stern Motion to Seal).

On May 15, after a hearing, the court issued a minute order adopting its tentative ruling denying the Olson Motion and the Millard Motion. Further, the court continued the Regents Signa Motion and the Regents Reyes Motion to June 5, 2026, to allow time to resolve the Signa Motion to Seal and the Reyes Motion to Seal.

Also on May 15, after the deadline prescribed in the May 8 Order, Smith filed an opposition to the Smith Motion to Seal.

On May 18, M Little and T Little filed an opposition to the Little Motion to Seal; Stern filed an opposition to the Stern Motion to Seal; Signa filed an opposition to the Signa Motion to Seal; and Reyes filed an opposition to the Reyes Motion to Seal.

On May 20, Signa, M Little, T Little, Reyes, and Stern (collectively, Plaintiffs) filed an ex parte application for an order shortening time for a hearing on a forthcoming motion to consolidate the Signa Action, the Little Action, the Reyes Action, and the Stern Action (collectively, the Actions) for trial. On May 21, after a hearing, the court granted that application, set the hearing on that motion on May 29, 2026, and ordered that any opposition to that motion be filed no later than May 27.

On May 21, 2026, Plaintiffs filed their motion for an order consolidating the Actions for all purposes including trial (the Motion to Consolidate).

On May 22, the court continued the hearing on the Smith Motion to Seal to May 29, 2026.

On May 27, the Regents filed an opposition to the Motion to Consolidate with the court.

Analysis:

(1) Smith Motion to Seal

California has “long recognized a common law right of access to public documents, including court records.” (Overstock.com, Inc. v. Goldman Sachs Group, Inc. (2014) 231 Cal.App.4th 471, 483 (Overstock); see also McGuire v. Superior Court (1993) 12 Cal.App.4th 1685, 1687 [“Court records are open to the public unless they are specifically exempted from disclosure by statute or are protected by the court itself due to the necessity of confidentiality.”].)

“California law also recognizes a constitutional right of access, grounded in the First Amendment, to court proceedings and court documents. [Citation.] ‘A strong presumption exists in favor of public access to court records in ordinary civil trials. [Citation.] That is because “the public has an interest, in all civil cases, in observing and assessing the performance of its public judicial system, and that interest strongly supports a general right of access in ordinary civil cases.” [Citation.] Because orders to seal court records implicate the public’s right of access under the First Amendment, such orders are subject to ongoing judicial scrutiny, including at the trial court level.” (In re Marriage of Tamir (2021) 72 Cal.App.5th 1068, 1078.)

California Rules of Court, rules 2.550 and 2.551 “apply to records sealed or proposed to be sealed by court order.” (Cal. Rules of Court, rule 2.550(a)(1).) Those rules “do not apply to records that are required to be kept confidential by law.” (Cal. Rules of Court, rule 2.550(a)(2).) “[T]he rules do apply to discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings.” (Cal. Rules of Court, rule 2.550(a)(3).)

“A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).) “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1).)

“A copy of the motion or application must be served on all parties that have appeared in the case. Unless the court orders otherwise, any party that already has access to the records to be placed under seal must be served with a complete, unredacted version of all papers as well as a redacted version.” (Cal. Rules of Court, rule 2.551(b)(2).) The proofs of service submitted with the Smith Motion to Seal, and the filing by Smith of an opposition to that motion, indicate that a copy of that motion was properly served.

“[A] reasoned decision about sealing . . . records cannot be made without identifying and weighing the competing interests and concerns. Such a process is impossible without (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information sufficient to accomplish the first two steps is logically placed upon the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm him and how. This means at a minimum that the party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.)

The Smith Motion to Seal seeks an order placing under seal “exhibits numbered 1-23 which were filed in support of the [Regents Smith Motion].” (Notice at p. 4, ll. 4-10 & ¶ 1.) In that motion, the Regents asserts that on February 13, 2026, it filed an Amended Appendix of Evidence (the Smith Amended Appendix) “which sought to lodge a copy of the exhibits numbered 1-23 under seal....” (Memorandum at p. 4, ll. 20-22.) A copy of the Smith Amended Appendix filed by the Regents in the public record on February 13, 2026, is attached to the declaration of the Regents’ counsel, Jaqueline Orozco (attorney Orozco), submitted in support of the Smith Motion to Seal. (Orozco Dec., ¶ 4 & exhibit 2.)

As a threshold matter, though attorney Orozco’s declaration, and the court’s records, show that the Regents filed a public redacted version of the Smith Amended Appendix on February 13, 2026, the Regents did not lodge the Smith Amended Appendix conditionally under seal on that date, notwithstanding the filing by the Regents of a notice of lodging of that appendix on February 13. Instead, court records reflect that the Regents lodged a complete, unredacted version of the Smith Amended Appendix conditionally under seal on February 25, 2026, by delivering a flash drive containing that record to the Clerk of the Court.

In addition, the court’s copy of the unredacted version of the Smith Amended Appendix lodged by the Regents conditionally under seal on February 25, 2026, does not include a proof of service. Therefore, the date on which the Regents served any party with a complete, unredacted version of the Smith Amended Appendix is unclear. Absent a dispute, the court assumes without deciding that the Regents has timely and properly served the parties with a copy of the unredacted version of the

Smith Amended Appendix.

Court records also reflect that on February 11, 2026, the Regents filed a public redacted version of an appendix of evidence in support of the Regents Smith Motion that also identifies exhibits numbered 1 through 23. Though the Regents also filed a notice of lodging of that appendix on that same date, the court has no record showing that the Regents lodged an unredacted version of that appendix conditionally under seal. Under the circumstances present here, and as the Smith Motion to Seal describes and is directed to only those exhibits that are identified and described in the public redacted version of the Smith Amended Appendix filed by the Regents on February 13, the court understands the Smith Amended Appendix to supersede and replace the prior appendix of evidence filed by the Regents on February 11, 2026. For these reasons, the court considers only the Smith Amended Appendix, and the exhibits attached to those documents, and not any prior version of that document.

The public redacted version of the Smith Amended Appendix identifies only 23 exhibits, and the title of each exhibit. (See also Orozco Dec., exhibit 2.) Therefore, the present record reflects, without dispute, that the Smith Motion to Seal seeks an order placing under seal all of the exhibits submitted by the Regents as a basis for adjudication of the Regents Smith Motion. The court's review of the unredacted version of the Smith Amended Appendix shows that those exhibits include over 1,000 pages of material. (Feb. 25, 2026, Lodged Smith Amended Appendix at pdf pp. 9-1056.)

"[T]he notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (Code Civ. Proc., § 1010.) "A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." (Cal. Rules of Court, rule 3.1110(a).) "The purpose of the notice requirements 'is to cause the moving party to "sufficiently define the issues for the information and attention of the adverse party and the court." ' [Citations.]" (Kinda v. Carpenter (2016) 247 Cal.App.4th 1268, 1277 (Kinda).) "As a general rule, the trial court may consider only the grounds stated in the notice of motion." (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1125.) Though the notice of the Smith Motion to Seal states the nature of the order sought by the Regents, and the papers on which that motion is based, wholly absent from that notice are the grounds for issuance of that order. For these reasons, the notice of the Smith Motion to Seal is deficient.

Though the court, generally, may not consider any grounds not stated in the notice of the Smith Motion to Seal for all reasons discussed above, "it may be sufficient that the supporting papers contain the grounds for the relief sought, even if the notice does not. [Citations.] It also may be sufficient if the omitted issue, or ground for relief, was raised without objection before the trial court." (Kinda, supra, 247 Cal.App.4th at p. 1277.)

The opposition of Smith does not raise any objection to any deficiencies in the notice of the Smith Motion to Seal, including those described above. In addition, the supporting memorandum contains the grounds for the order sought in that motion. For these reasons, the court will consider the grounds set forth in the memorandum submitted in support of the Smith Motion to Seal.

The sole ground asserted in that memorandum is that the Regents Smith Motion addresses allegations that concern conduct of law enforcement personnel and subsequent workplace or internal affairs investigation files of peace officers which are confidential pursuant to Penal Code section 832.7, subdivision (a). (Memorandum at p. 4.) In support, attorney Orozco states, in a conclusory manner, that the Regents Smith Motion "references and includes exhibits that are law enforcement personnel records or contain information from workplace investigations, including Internal Affairs investigations, performed by [the Regents] and maintained by the [UCSB-PD] all of which are designated as confidential." (Orozco Dec., ¶ 5; see also Memorandum at p. 4.) Attorney Orozco further states that those exhibits "are subject to Penal Code sections 832.5, 832.7, 832.8 and Evidence Code sections 1043, 1044, 1045." (Orozco Dec., ¶ 6; see also Memorandum at pp. 4 & 6.)

The court is "not obliged to accept the [Orozco] declaration[] as dispositive." (In re Providian Credit Card Cases (2002) 96 Cal.App.4th 292, 301 (Providian).) Though the Smith Motion to Seal includes a blanket request for an order sealing all of the exhibits submitted as a basis for adjudication of the Regents Smith Motion, the motion fails to present any information, evidence, or reasoned argument showing, on a point-by-point basis as to each specific exhibit to the Smith Amended Appendix, why each of exhibits is confidential under Penal Code sections 832.5, 832.7, and 832.8, or Evidence Code sections 1043, 1044, and 1045. To the extent the Regents contends that some portion of each exhibits contains or reflects

information that is confidential under those statutes, the Smith Motion to Seal also fails to present any information or evidence showing where any such purportedly confidential information appears in each exhibit.

By failing to present any information, evidence, or reasoned argument showing why each specific exhibit or portions of any exhibit are confidential pursuant to Penal Code section 832.7, the Regents has effectively shifted its burden to the court, which requires the court to review over 1,000 pages of material to determine which, if any, exhibit attached to the Smith Amended Appendix is, as attorney Orozco contends, a law enforcement personnel record and why; and to determine which, if any, exhibit contains information from workplace or internal affairs investigations and why. For these and all further reasons discussed above, the Regents has wholly failed to meet its burden to show why each of the 23 exhibits attached to the Smith Amended Appendix is confidential pursuant to Penal Code sections 832.5, 832.7, and 832.8, or Evidence Code sections 1043, 1044, and 1045. (Providian, supra, 96 Cal.App.4th at p. 301 [noting that, as to the issue presented in that case, “it was defendants’ burden to prove the existence of trade secrets [citations], and to overcome the presumption in favor of public access.”].)

The failure by the Regents to meet its burden justifies a denial of the Smith Motion to Seal for all reasons discussed above. Notwithstanding the Regents’ failure to present any information or evidence, on a point-by-point basis, explaining why each exhibit is confidential, contains confidential information, or is required to be kept confidential pursuant to the statutory provisions cited in attorney Orozco’s declaration and above, the court has conducted its own review of the exhibits attached to the Smith Amended Appendix. For all reasons discussed herein, the court will grant the Smith Motion to Seal as to exhibits 3 and 17 through 21, only, and will otherwise deny that motion.

Considering the nature of the confidentiality protection claimed by the Regents as to exhibits 1 through 23 of the Smith Amended Appendix which remain lodged conditionally under seal, the court’s “discussion of those documents must be circumspect.” (Providian, supra, 96 Cal.App.4th at p. 303.)

(a) Exhibits 11, 12, 13, 14, 15, 16, and 22

Relevant here based on the sole ground stated in the Regents’ memorandum and attorney Orozco’s declaration, “[i]n 1978, the California Legislature codified the privileges and procedures surrounding what had come to be known as ‘Pitchess motions’ ... through the enactment of Penal Code sections 832.7 and 832.8 and Evidence Code sections 1043 through 1045.” (City of Santa Cruz v. Municipal Court (1989) 49 Cal.3d 74, 81 & fns. 3, 4.) “Those sections create a statutory scheme making [certain law enforcement personnel] records confidential and subject to discovery only through the procedure set out in the Evidence Code.” (Riverside County Sheriff’s Dept. v. Stiglitz (2014) 60 Cal.4th 624, 630.)

Penal Code section 832.7, which “creates a general privilege and then carves out a limited exception” (City of Hemet v. Superior Court (1995) 37 Cal.App.4th 1411, 1427 (City of Hemet)), provides that “the personnel records of peace officers and custodial officers and records maintained by a state or local agency pursuant to [Penal Code] section 832.5, or information obtained from these records, are confidential and shall not be disclosed in any criminal or civil proceeding except by discovery pursuant to Sections 1043 and 1046 of the Evidence Code[]” (Pen. Code, § 832.7, subd. (a)).

The public redacted version of the Smith Amended Appendix describes exhibits 11 through 16 and 22 as: (exhibit 11) “Pertinent Pages from the Certified Copy of the Transcript of the Deposition of Plaintiff, Taken on March 20, 2025”; (exhibit 12) “Pertinent Pages from the Certified Copy of the Transcript of the Deposition of David Millard, Taken on June 19, 2024”; (exhibit 13) “Pertinent Pages of Plaintiff’s Responses to Defendant’s Special Interrogatories, Set One, Served on October 4, 2021”; (exhibit 14) “Plaintiff’s Supplemental Responses to Defendant’s Special Interrogatories, Set One, Served on December 10, 2025”; (exhibit 15) “Plaintiff’s Responses to Defendant’s Requests for Production, Set One, Served on October 4, 2021”; (exhibit 16) “Plaintiff’s Supplemental Responses to Defendant’s Requests for Production, Set One, Served on December 10, 2025; and (exhibit 22) “Defendant’s Responses to Plaintiff’s Requests for Production, Set One, Served on October 1, 2021”. (Orozco Dec., exhibit 2 at p. 5.)

“[P]eace officer personnel records include only the types of information enumerated in [Penal Code] section 832.8.” (Commission on Peace Officer Standards & Training v. Superior Court (2007) 42 Cal.4th 278, 293; see also Pasadena Police

Officers Assn. v. Superior Court (2015) 240 Cal.App.4th 268, 292 (Pasadena.) Penal Code section 832.8 states: "Personnel records' means any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following:

"(1) Personal data, including marital status, family members, educational and employment history, home addresses, or similar information.

"(2) Medical history.

"(3) Election of employee benefits.

"(4) Employee advancement, appraisal, or discipline.

"(5) Complaints, or investigations of complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties.

"(6) Any other information the disclosure of which would constitute an unwarranted invasion of personal privacy." (Pen. Code, § 832.8, subd. (a)(1)-(6).)

The court's review of exhibits 11 through 16 and 22 shows, without dispute by the Regents, that those exhibits consist of excerpts from the transcripts of the depositions of Smith and Millard, and the discovery responses of Smith and the Regents, each of which appear to have been generated during this litigation. Considering that exhibits 11 through 16 and 22, on their face, consist of discovery materials generated during this litigation, and as the Smith Motion to Seal presents no information, evidence, or argument showing why those materials contain the type of information described in Penal Code section 832.8, the Smith Motion to Seal, and the court's review, does not show that exhibits 11 through 16 and 22 are personnel records or confidential pursuant to Penal Code section 832.7.

Pursuant to California Rules of Court, rules 2.550 and 2.551, a "record" includes "all or a portion of any document, paper, exhibit, transcript, or other thing filed or lodged with the court, by electronic means or otherwise." (Cal. Rules of Court, rule 2.550(b)(1).) The Smith Motion to Seal also does not present any information specifically identifying where any purportedly confidential information of the type described in Penal Code section 832.8, subdivision (a), appears in exhibits 11 through 16 or 22, or explain why that information is required to be kept confidential. Those exhibits also do not show, on their face, that they contain law enforcement personnel files as attorney Orozco asserts. To the extent the Regents contend that the entirety of each of those exhibits is confidential because some limited portion reflects information appearing in a personnel record, it would appear that the Smith Motion to Seal seeks to "extend the statute beyond its limited purpose." (Pasadena, supra, 240 Cal.App.4th at p. 293.)

Also relevant here, Penal Code section 832.5 provides: "Each department or agency in this state that employs peace officers shall establish a procedure to investigate complaints by members of the public against the personnel of these departments or agencies, and shall make a written description of the procedure available to the public." (Pen. Code, § 832.5, subd. (a).) "All complaints retained pursuant to [subdivision (b)] may be maintained either in the peace or custodial officer's general personnel file or in a separate file designated by the department or agency as provided by department or agency policy, in accordance with all applicable requirements of law." (Pen. Code, § 832.5, subd. (b).)

The Smith Motion to Seal also fails to show, for the same or similar reasons discussed above, why the discovery materials contained in exhibits 11 through 16 and 22 are records maintained by the Regents or UCSB-PD pursuant to the provisions of Penal Code section 832.5. Those exhibits also do not show, on their face, that they are records maintained pursuant to that statute. For these and the reasons further discussed above, the court questions the credibility of the statements contained in attorney Orozco's declaration.

The confidentiality protections provided under Penal Code section 832.7 also apply to “information obtained from” the “personnel records of peace officers and custodial officers and records maintained by a state or local agency pursuant to Section 832.5....” (Pen. Code, § 832.7, subd. (a).) The Smith Motion to Seal also presents no evidence, information, or reasoned argument showing why any information contained in exhibit 11 was obtained by Smith from a personnel record or record maintained pursuant to Penal Code section 832.5. For example, the court’s review of that exhibit shows that it reflects Smith’s own observations and complaints regarding the matters at issue in the Smith Action. (See, e.g., Lodged Smith Amended Appendix, exhibit 11 at pp. 36-40, 49-57, 68-73, 76-79, 81-84, 86-88.) Further, exhibit 11 does not show, on its face, what, if any, information was obtained by Smith from the personnel records of a peace officer or any record maintained by the Regents or UCSB-PD pursuant to Penal Code section 832.5.

Even if the Regents could provide evidence or information showing that any specific information contained in exhibit 11 was obtained by Smith from a peace officer’s personnel record or a record maintained by the Regents or the UCSB-PD pursuant to Penal Code section 832.5, the Smith Motion to Seal fails, for all reasons discussed above, to present that evidence, or to show where that information appears in that exhibit.

The same reasoning and analysis apply to exhibits 12 through 16 and 22, which also consist of discovery materials ostensibly generated during this litigation, and which do not show, on their face, that any information contained those materials was obtained from a personnel record or records maintained pursuant to Penal Code section 832.5. (See, e.g., Lodged Smith Amended Appendix, exhibit 12 at pp. 17, 58; exhibit 13 at pp. 15-31; exhibit 14 at pp. 2-3; exhibit 15 at pp. 2-4; exhibit 16 at p. 2; exhibit 22 at p. 5.) The Smith Motion to Seal also fails to present any evidence or information showing why a discovery response in which the responding party agrees to produce documents, or states that no responsive documents exist, reflects information obtained from the types of records described in Penal Code section 832.7. (See, e.g., exhibit 22 at pp. 4, 7.)

In addition, the Regents does not appear to dispute that the personnel records of peace officers, records maintained by the Regents or UCSB-PD pursuant to Penal Code section 832.5, or information obtained from those records, may not be disclosed “except by discovery pursuant to Sections 1043 and 1046 of the Evidence Code.” (Pen. Code, § 832.7, subd. (a).) Though exhibits 11 through 16 and 22 consist of discovery materials generated during this litigation, the Smith Motion to Seal does not address whether any written motion was required to be filed, or was filed, by the party seeking the discovery reflected in those exhibits. (See Evid. Code, § 1043, subd. (a).) Court records also do not show that any written motion pursuant to Evidence Code section 1043 was filed with the court. For these additional reasons, the court views the Regent’s and its counsel’s representations “with considerable skepticism” (Providian, supra, 96 Cal.App.4th at p. 309.)

For all reasons discussed above, the Smith Motion to Seal fails to show why exhibits 11 through 16 and 22 are confidential, or required to be kept confidential, pursuant to Penal Code section 832.7. (Cal. Rules of Court, rule 2.550(a)(2).)

The Smith Motion to Seal also asserts that the confidentiality of peace officer records under Penal Code section 832.7 gives rise to an overriding interest in protecting exhibits 11 through 16 and 22 from disclosure, which will be prejudiced if those records are not sealed because this case is likely to be subject to public scrutiny; it is not uncommon for officers to receive harsh public criticism; the exhibits would be disclosed without going through the process set forth in the “Pitchess statutes”; and any public disclosure of those exhibits could jeopardize a fair and unbiased analysis of the evidence and the security of all individuals involved. (Motion at pp. 6-7.)

The Regents also asserts that the proposed sealing of exhibits 11 through 16 and 22 is narrowly tailored, and that no less restrictive means exists. In support of that assertion, attorney Orozco states that “[r]edaction alone will not achieve the confidentiality of personnel records of peace officers because unredacted information and statements is sufficient to infer the identity of officers involved.” (Orozco Dec., ¶ 7.)

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish:

“(1) There exists an overriding interest that overcomes the right of public access to the record;

“(2) The overriding interest supports sealing the record;

“(3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;

“(4) The proposed sealing is narrowly tailored; and

“(5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d)(1)-(5); see also *Sander v. State Bar of California* (2013) 58 Cal.4th 300, 319, fn. 7.)

Further, “[a]n order sealing the record must:

“(A) Specifically state the facts that support the findings; and

“(B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.” (Cal. Rules of Court, rule 2.550(e)(1)(A), (B).)

The same or similar reasoning and analysis apply. Apart from the contentions further discussed above, the Smith Motion to Seal fails to present any information, evidence, or reasoned argument showing the existence of any overriding interest that overcomes the right of public access to exhibits 11 through 16 and 22, or any information contained in those exhibits. Because that motion fails to identify any specific information contained in exhibits 11 through 16 and 22 that is confidential, or where that information appears, the Regents has also failed to meet its burden to show why the proposed sealing of the entirety of those exhibits is narrowly tailored.

Furthermore, the general assertion that this case may be subject to public scrutiny or public criticism, without more, “calls for speculation.” (In re Willon (1996) 47 Cal.App.4th 1080, 1100.) For example, the Smith Motion to Seal presents no information, evidence, or reasoned argument showing “(1) the nature and extent of the publicity, (2) the amount of information already in the public domain, (3) the existence of prejudicial information not yet released to the public, (4) the size of the county from which prospective jurors will be drawn, and (5) whether potential voir dire or other measures could eliminate any prejudice caused by the publicity.” (People v. Jackson (2005) 128 Cal.App.4th 1009, 1025.) That motion also fails to show, with appropriate citations to the record, why any exhibit contains information that is “highly prejudicial.” (Ibid.) For these reasons, the Smith Motion to Seal fails to show “[a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed[.]” (Cal. Rules of Court, rule 2.550(d)(3).)

“[T]he public has an interest, in all civil cases, in observing and assessing the performance of its public judicial system, and that interest strongly supports a general right of access in ordinary civil cases.” (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1210, original italics.) For all reasons discussed above, the general and conclusory points and arguments advanced in the Smith Motion to Seal, which lack credibility and the specificity required under court rules, fail to show the existence of an overriding interest that overcomes the right of public access to exhibits 11 through 16 and 22, or why the proposed sealing of those exhibits in their entirety is narrowly tailored. For these same reasons, that motion also fails to show any prejudice to an overriding interest, or why there exists no less restrictive means to achieve any purported overriding interest in those exhibits. For these and all further reasons discussed above, and as the Smith Motion to Seal does not present any information or evidence that would support the express findings required under California Rules of Court, rule 2.550 to seal all or any part of exhibits 11 through 16 and 22, the court will deny the Smith Motion to Seal as to those exhibits.

(b) Exhibit 2

The Smith Amended Appendix describes exhibit 2 as “Plaintiff Ryan Smith’s Complaint, Filed on March 27, 2019”. (Orozco Dec., exhibit 2 at p. 4.) The same reasoning and analysis apply. For all reasons discussed above, the Smith Motion to Seal fails to show why exhibit 2 is a personnel record or a record maintained by the Regents or UCSB-PD pursuant to Penal Code section 832.5, or why that exhibit, or any information contained in that exhibit, is confidential, or required to be kept confidential, pursuant to Penal Code section 832.7.

The undisputed available information and evidence also shows that Smith filed their complaint in the public record of the Smith Action. The public version of that complaint does not include any redactions. In addition, though Smith is named as “John Doe” in their complaint, the Regents do not appear to dispute that Smith’s name was publicly disclosed after the filing of that pleading, including by the Regents and Smith in this proceeding.

Smith contends in their opposition that the Regents has failed to meet its burden to show why any exhibit, or information contained in an exhibit, is confidential pursuant to Penal Code section 832.7, and that the Regents’ reliance on that statute is misplaced. (See Opp. at pp. 5-6.) Notwithstanding whether the opposition of Smith was filed timely, the court construes that opposition as an express waiver of the confidentiality protections provided under Penal Code section 832.7 as to any information regarding Smith that is contained in exhibit 2. (Pasadena, supra, 240 Cal.App.4th at pp. 274, 293–294 [discussing waiver as to personnel information appearing in a report concerning an officer-involved shooting].)

As further discussed above, though Smith cannot waive any confidentiality protections as to any peace officer other than Smith (Pasadena, supra, 240 Cal.App.4th at pp. 293–294), the Smith Motion to Seal fails, for the same reasons discussed above, to identify any specific information contained in exhibit 2 that is confidential or required to be kept confidential pursuant to Penal Code section 832.7, or where that information appears in that exhibit.

There also exists some question as to whether the Regents, by its conduct, has waived any confidentiality protection as to exhibit 2.

“Waiver refers to the act, or the consequences of the act, of one side. Waiver is the intentional relinquishment of a known right after full knowledge of the facts and depends upon the intention of one party only. Waiver does not require any act or conduct by the other party.” (DRG/Beverly Hills, Ltd. v. Chopstix Dim Sum Cafe & Takeout III, Ltd. (1994) 30 Cal.App.4th 54, 59.)

Relevant here, “[f]iling a document makes it a part of the permanent court file, whereas lodging a document makes it only temporarily a court record.” (Mao’s Kitchen, Inc. v. Mundy (2012) 209 Cal.App.4th 132, 150 (Mao’s Kitchen); see also Overstock, supra, 231 Cal.App.4th at p. 487, fn. 8.) Because exhibit 2 was filed and not lodged with the court, the information contained in that document has been made available to any member of the public who consults the court’s file since 2019. (See Mao’s Kitchen, supra, 209 Cal.App.4th at p. 150 [general discussion].)

The Smith Motion to Seal presents no information or evidence to indicate or suggest that Smith inadvertently or mistakenly filed their complaint in the public record instead of lodging that pleading confidentially under seal. Instead, the present record shows or suggests that Smith intended to publicly disclose any confidential information contained in exhibit 2. Even if the public filing of the complaint in the Smith Action is not, in itself, sufficient to show an express waiver of any statutory confidentiality protections, Smith’s conduct in this proceeding as further described above, suggests that Smith has chosen to waive those protections as to that record. (Berkeley Police Assn. v. City of Berkeley (2008) 167 Cal.App.4th 385, 406, fn. 22.)

Furthermore, though “the confidentiality privilege is possessed both by the agency and the subject officer[]” (City of Hemet, supra, 37 Cal.App.4th at p. 1430, original italics), the Smith Motion to Seal presents no evidence or information showing that the Regents did not know that exhibit 2 was filed by Smith in the public record without redaction. The Smith Motion to Seal also does not explain why the Regents was prevented from filing a motion for an order placing exhibit 2 under seal pursuant to the provisions of Penal Code section 832.7. There is also no information or evidence to suggest that the Regents, acting through its counsel, did not know that exhibit 2 would become part of the court’s permanent file or would be accessible to the public once that pleading was filed, including in regard to any purportedly confidential information contained in that record.

A waiver may arise from “an act which, according to its natural import, is so inconsistent with an intent to enforce the right as to induce a reasonable belief that such right has been relinquished.” (Rheem Mfg. Co. v. U. S. (1962) 57 Cal.2d 621, 626.) To the extent it can be implied from the Regent’s conduct in this litigation further described above, that the Regents waived the confidentiality protection provided under Penal Code section 832.7 concerning any information contained in exhibit 2, there also exists some question as to whether that waiver extends to other exhibits to the extent they contain that same information.

Even if the Regents could provide evidence or information that identifies any specific information contained in exhibit 2 which the Regents contend is subject to the statutory confidentiality protections discussed above, and that the Regents has not waived those protections by its conduct in this litigation, the Smith Motion to Seal does not present any such evidence or information as further discussed above. That motion also fails to specifically identify where any such information appears in exhibit 2, or why that specific information cannot be redacted for the reasons asserted by attorney Orozco and described above.

Apart from the contentions described above, the Smith Motion to Seal also fails, for the same reasons discussed herein, to identify the existence of an overriding interest in exhibit 2 that overcomes the right of public access to that document. Considering that exhibit 2 has been accessible to the public since 2019, the Smith Motion to Seal also fails to show why there exists any substantial probability of prejudice if that record is not sealed. (Cal. Rules of Court, rule 2.550(d)(3).)

The court also notes that exhibit 2 contains general allegations regarding the status of the Regents and UCSB-PD; the relationship between those parties; whether venue and jurisdiction is proper or appropriate; the exhaustion of administrative remedies; the dates of plaintiff’s employment; and the damages sought by plaintiff. (Lodged Smith Amended Appendix, exhibit 2, ¶¶ 2-3, 9-14, 15, & pp. 35-36.) Wholly absent from the Smith Motion to Seal is any information, evidence, or argument showing why those matters are or are confidential or required to be kept confidential pursuant to Penal Code section 832.7. For these reasons, the Smith Motion to Seal fails to show that there exist no less restrictive means to achieve any overriding interest in that exhibit. (Cal. Rules of Court, rule, 2.550(d)(5).)

“[T]he trial courts can, and should, view overly inclusive sealing efforts with a jaundiced eye, and impose sanctions as appropriate.” (Overstock, supra, 231 Cal.App.4th at p. 500.) For all reasons discussed above, and as the court does not credit the representation that exhibit 2 is a personnel record or record maintained pursuant to Penal Code 832.5 that is confidential or required to be kept confidential under Penal Code section 832.7, the Regents has failed to meet its burden to show why exhibit 2, or any portion of that document, is confidential. Therefore, the court will deny the Smith Motion to Seal as to that exhibit.

(c) Exhibits 1, 4, and 23

The Smith Amended Appendix describes exhibit 1 as the “Federated University Police Officers Association Agreement dated July 1, 2017 to December 31, 2020” (the FUPOA Agreement). (Orozco Dec., exhibit 2 at p. 4.) It is the court’s understanding, based on its review of the FUPOA Agreement, that exhibit 1 concerns employment relations. (Lodged Smith Amended Appendix, exhibit 1 at pdf pp. 10-12.)

The same or similar reasoning and analysis apply. For the same reasons discussed above, the Smith Motion to Seal fails to present any information, evidence, or argument showing why exhibit 1 is a personnel record that contains the type of information set forth in Penal Code section 832.8, or why that document is maintained by the Regents pursuant to Penal Code section 832.5. The court’s own review shows that exhibit 1, on its face, is not a personnel record or record maintained pursuant to Penal Code section 832.5.

Furthermore, the Smith Motion to Seal fails to present any information or evidence showing why exhibit 1 contains any information obtained from the types of records described in Penal Code section 832.7.

In addition, and for the same reasons described above, the Regents has failed to meet its burden to show the existence of an overriding interest in exhibit 1 that overcomes the right to public access and supports sealing that record. As the Smith Motion to Seal seeks to place the entire document contained in exhibit 1 under seal, that motion also fails to show, for the same reasons discussed above, why the proposed sealing of that entire exhibit is narrowly tailored, or why no less restrictive means exist.

The same reasoning and analysis apply to the Regents' "WPP" and the "UCSB-PD Policy Manual" attached to the lodged Smith Amended Appendix as exhibits 4 and 23. For all further reasons discussed above, the court will deny the Smith Motion to Seal as to exhibits 1, 4, and 23.

(d) Exhibits 5, 6, 7, 8, 9, and 10

The Smith Amended Appendix describes exhibits 5 through 10 as (exhibit 5) "Mr. Horton's Correspondence, Dated October 26, 2018; (exhibit 6) "Correspondence to Smith and Mr. Horton, Dated July 17, 2019"; (exhibit 7) "Unsigned Whistleblower Retaliation Complaint Form Submitted by Mr. Horton on July 19, 2019"; (exhibit 8) "Correspondence to Smith and Mr. Horton, Dated August 1, 2019"; (exhibit 9) "Email Correspondence to Mr. Horton, Dated August 1, 2019"; and (exhibit 10) "Smith's Signed Whistleblower Retaliation Complaint Form, Dated July 19, 2019". (Orozco Dec., exhibit 2 at pdf pp. 4-5.)

Public records filed in the Smith Action reflect, without dispute, that as of December 2017, Smith was no longer employed with the UCSB-PD. (See Smith Complaint, ¶¶ 15 & 20.) Though the personnel records of a peace officer "do not cease being such after the officer's retirement", the Smith Motion to Seal presents no information or evidence showing why exhibits 5 through 10 were "generated while the officer [was] employed by" the Regents or UCSB-PD. (Davis v. City of Sacramento (1994) 24 Cal.App.4th 393, 400.)

In addition, the dates of exhibits 5 through 10 show or suggest that those documents were generated after Smith was no longer employed with the UCSB-PD. The Smith Motion to Seal presents no information or evidence showing why exhibits 5 through 10, or any part of those exhibits, were generated while Smith was employed by the Regents or UCSB-PD, notwithstanding the dates of those documents. For these additional reasons, the Smith Motion to Seal fails to show why exhibits 5 through 10 are personnel records pursuant to Penal Code section 832.8.

Exhibits 5 through 10 also do not show, on their face, that those documents were maintained by either the Regents or the UCSB-PD pursuant to Penal Code section 832.5. For these and all further reasons discussed above, the Regents has failed to meet its burden to show that exhibits 5 through 10 are confidential or required to be kept confidential pursuant to Penal Code section 832.7.

For the same or similar reasons discussed above, the Smith Motion to Seal also fails to identify any overriding interest that overcomes the right of public access to exhibits 5 through 10. Moreover, the Smith Motion to Seal does not present any information identifying what, if any, specific information contained in those exhibits is confidential pursuant to Penal Code section 832.7, where that information appears, or why that information cannot be redacted from those records. For these reasons, the Smith Motion to Seal fails to show that the proposed sealing of exhibits 5 through 10 is narrowly tailored.

For all reasons discussed above, the court will deny the Smith Motion to Seal as to exhibits 5, 6, 7, 8, 9, and 10.

(e) Exhibits 3, 17, 18, 19, 20, and 21

Though the Regents has, for the reasons discussed above, failed to meet its burden to show, on a point-by-point basis with supporting information, evidence, and argument, why each exhibit to the Smith Amended Appendix is a personnel record or record maintained by the Regents or UCSB-PD pursuant to Penal Code section 832.5, or confidential or required to be kept confidential under Penal Code section 832.7, it appears to the court, based on its own review, that exhibits 3 and 17 through 21 are or may be personnel records as further discussed below.

Though exhibits 3 and 17 through 21 do not show, on their face, that they are records maintained by the Regents or the UCSB-PD pursuant to Penal Code section 832.5, those exhibits appear to be files maintained under the name of an individual employed by the Regents and UCSB-PD, and which contain records relating to the information described in Penal Code section 832.8, subdivision (a). (See Pen. Code, § 832.8, subd. (a)(4), (5), & (6).) Notwithstanding whether Smith has waived any confidentiality protections provided under Penal Code section 832.7 as to exhibits 3 and 17 through 21, there is no evidence or information to suggest that the Regents has waived those protections as to those specific exhibits.

The opposition of Smith also does not present any information, evidence, or argument showing why exhibits 3 and 17 through 21 are subject to the limited exceptions set forth in Penal Code section 832.7. (See Pen. Code, § 832.7, subds. (a) [describing the “investigations or proceedings” to which that section does not apply] & (b)(1)-(13) [describing categories of records which “shall not be confidential”]; see also *Becerra v. Superior Court* (2020) 44 Cal.App.5th 897, 915–916 [discussing amendments to section 832.7 providing that “the confidentiality of officer personnel records is subject to a newly added subdivision (b)....”].)

For all reasons discussed above, the court’s review of exhibits 3 and 17 through 21 to the Smith Amended Appendix indicates or suggests that those documents are personnel records as that term is defined in Penal Code section 832.8, and that those exhibits are required to be kept confidential pursuant to Penal Code section 832.7, subdivision (a). For these and all further reasons discussed above, the court will grant the Smith Motion to Seal as to exhibits 3 and 17 through 21, only.

The court’s ruling as to exhibits 3 and 17 through 21 to the Smith Amended Appendix is for the purpose of determining the Smith Motion to Seal, only. The court does not determine, at this stage of the proceedings, whether those exhibits, or any other exhibit that the Regents seeks to place under seal in this proceeding, are confidential for purposes of trial.

(f) Procedural Matters

The May 8 Order requires that “any motion to seal any material lodged conditionally under seal as a basis for adjudication of the Regents Smith Motion include a notification of whether any lodged record is to be filed unsealed in the event that motion is denied.” (See Cal. Rules of Court, rule 2.551(b)(6).) In its reply to the opposition of Smith, the Regents states: “Should the Court be inclined to deny The Regents’ motion to seal, The Regents respectfully request that the Court Order The Regents to publicly file the exhibits in support of [the Regents Smith Motion] that are currently lodged with the Court” (Reply at p. 4, ll. 13-17.)

For all reasons discussed above and in the May 8 Order, the court will order the Regents to file a public redacted version of the Smith Amended Appendix, that redacts only exhibits 3 and 17 through 21, which are the only exhibits that the court will order to be placed under seal for purposes of adjudicating the Regents Smith Motion, and which does not include any redactions to exhibits 1, 2, 4 through 16, 22, and 23 of the Smith Amended Appendix, or any material contained in those exhibits.

(2) Signa Motion to Seal

The Signa Motion to Seal seeks an order placing under seal exhibits 1 through 9 submitted by the Regents as a basis for adjudication of the Regents Signa Motion. In support, attorney Orozco states that on February 2, 2026, the Regents filed an “Amended Appendix of Evidence” (the Signa Amended Appendix) which sought to lodge a copy of the exhibits numbered 1 through 9 under seal. (Orozco Dec., ¶ 4.) Attached to attorney Orozco’s declaration is a copy of the public redacted version of the Signa Amended Appendix filed by the Regents on February 2, 2026, as a basis for adjudication of the Regents Signa Motion. (Orozco Dec., exhibit 2.)

Court records reflect that the Regents also filed an appendix of evidence in support of the Regents Signa Motion on January 22, 2026, and did not lodge a complete, unredacted version of that appendix. As further discussed above, the Regents did not lodge a complete, unredacted version of the Signa Amended Appendix conditionally under seal until February 25, 2026,

when the Regents delivered the flash drive described above to the Clerk of the Court. That flash drive also contains the complete, unredacted version of the Signa Amended Appendix. Though the unredacted Signa Amended Appendix lodged with the court on February 25 also does not include a proof of service, the court will, for all reasons discussed above, assume without deciding that the Regents has timely and properly served that document on all parties.

For the same reasons discussed above, the court understands the Signa Amended Appendix to supersede and replace the former version of that appendix filed by the Regents in support of the Regents Signa Motion on January 22, and will consider only those exhibits which are attached to the lodged Signa Amended Appendix, and not any exhibits attached to any prior version of that document.

As the public redacted version of the Signa Amended Appendix identifies exhibits numbered 1 through 9 only, the Signa Motion to Seal also seeks an order placing under seal all of the exhibits submitted as a basis for adjudication of the Regents Signa Motion. The court's review of the lodged Signa Amended Appendix shows that those exhibits contain nearly 400 pages of material. (Lodged Signa Amended Appendix at pdf pp. 8-404.)

The notice of the Signa Motion to Seal is identical or nearly identical to the notice of the Smith Motion to Seal, and is also deficient for the same reasons discussed above. As Signa's opposition to the Signa Motion to Seal does not address or raise any objection to any deficiencies in that notice, the court will consider the grounds asserted in the supporting memorandum submitted by the Regents.

The memorandum submitted in support of the Signa Motion to Seal, and the separately filed declaration of attorney Orozco also submitted in support of that motion, is identical or nearly identical to the memorandum and declaration submitted in support of the Smith Motion to Seal, and presents the same, sole ground for the order sought by the Regents as further discussed above. Therefore, the same reasoning and analysis apply here.

The public redacted version of the Signa Amended Appendix, a copy of which is attached to the separately filed declaration of attorney Orozco, describes the exhibits to that document as (exhibit 1) "Plaintiff's First Amended Complaint for Violations of the California Whistleblower Act and Labor Code Section 1102.5, filed on February 4, 2019"; (exhibit 2) "Pertinent Pages from the Certified Copy of the Transcript of Plaintiff's Deposition, Volume No. 1, Taken on October 25, 2023"; (exhibit 3) "Pertinent Pages from the Certified Copy of the Transcript of Plaintiff's Deposition, Volume No. 2, Taken on October 27, 2023"; (exhibit 4) "Plaintiff's Responses to Defendant's Requests for Production, Set One, served on May 2, 2019, and Pertinent Documents Produced by Plaintiff with its Response"; (exhibit 5) "Pertinent Pages from the Certified Copy of the Transcript of David Millard's Deposition, Taken on June 19, 2024"; (exhibit 6) "Defendant's Special Interrogatories, Set One, to Plaintiff, Served on May 25, 2021"; (exhibit 7) "Plaintiff's Responses to Defendant's Special Interrogatories, Set One, Served on July 22, 2021"; (exhibit 8) "Pertinent Pages from the Certified Copy of the Transcript of Dustin Olson's Deposition, Volume No. 1, Taken on April 6, 2023"; and (exhibit 9) "Defendant's Supplemental Responses to Plaintiff's Request for Production, Set One, Served on June 11, 2024 and Pertinent Documents Produced by Defendant with its Response". (Orozco Dec., exhibit 2 at p. 4.)

The same reasoning and analysis apply to exhibit 1 of the Signa Amended Appendix. The Signa Motion to Seal also fails to explain, for the same reasons discussed above, why exhibit 1 is a personnel record pursuant to Penal Code section 832.8 or a record maintained pursuant to Penal Code section 832.5. That motion also fails to present any information specifically identifying any information contained in exhibit 1 that the Regents contend is confidential under Penal Code section 832.7, or where that information appears in that exhibit.

Further, the Regents do not appear to dispute that exhibit 1 was also filed in the public record by Signa without redaction. The Signa Motion to Seal presents no information or evidence to show why the filing of exhibit 1 in the public record or without any redactions, was inadvertent or mistaken; why the Regents did not know that exhibit 1 was filed in the public record; or why the Regents was prevented from seeking an order placing that exhibit under seal to the extent the Regents contends that pleading contains information that is confidential or required to be kept confidential pursuant to Penal Code section 832.7.

For the same reasons discussed above, the Signa Motion to Seal similarly fails to present information showing the existence of an overriding interest that overcomes the right of public access to exhibit 1 and that supports sealing the record; why a substantial probability exists that any overriding interest will be prejudiced if exhibit 1 is not sealed; why the proposed sealing of the entirety of exhibit 1 is narrowly tailored; or why no less restrictive means, such as redaction, exists to achieve any overriding interest. For these and all further reasons discussed above, the court will deny the Signa Motion to Seal as to exhibit 1 of the Signa Amended Appendix.

The court's review of exhibits 2 through 9 of the Signa Amended Appendix shows that those documents, on their face, also consist of discovery materials generated during this litigation. Therefore, the same reasoning and analysis apply here. For the same or similar reasons further discussed above, the Signa Motion to Seal fails to present any information, evidence, or reasoned argument showing why exhibits 2 through 9 of the Signa Amended Appendix are confidential, or required to be kept confidential, pursuant to Penal Code section 832.7.

The Signa Motion to Seal also and for the same reasons discussed above, does not present any information or evidence showing the existence of an overriding interest that overcomes the right of public access to exhibits 2 through 9; a substantial probability of prejudice if those exhibits are not sealed; or that the proposed sealing of all portions of those exhibits is narrowly tailored. Further discussed above, there is no information or evidence showing that any written motion as described in Evidence Code section 1043 was filed with the court in connection with any of the discovery materials contained in exhibits 2 through 9 of the Signa Amended Appendix. For these and all further reasons discussed above, the court will deny the Signa Motion to Seal as to those exhibits.

The May 8 Order requires that the Signa Motion to Seal also include the notification described above in regard to whether any lodged exhibit is to be filed unsealed in the event that motion is denied. The Regents' reply to the opposition of Signa includes the identical statement described above, in which the Regents request that, should the court deny the Signa Motion to Seal, the court order the Regents to publicly file the exhibits attached to the Signa Amended Appendix. (See Reply at p. 4, ll. 11-15.)

For the same reasons discussed above and in the May 8 Order, the court will order the Regents to file the Signa Amended Appendix lodged conditionally under seal on February 25, unsealed and without any redactions to any exhibit or material contained in any exhibit.

(3) Reyes Motion to Seal

The Reyes Motion to Seal requests an order placing under seal exhibits numbered 1 through 9 submitted by the Regents as a basis for adjudication of the Regents Reyes Motion. Though the present record reflects that the Regents filed a public redacted version of an appendix of evidence submitted in support of the Regents Reyes Motion (the Reyes Appendix) on February 13, 2026, the Regents did not lodge a complete, unredacted version of that appendix until February 25, 2026, when the flash drive further described above, which also contains a complete, unredacted version of the Reyes Appendix, was delivered to the court. Absent a dispute, the court will, for all reasons discussed above, assume without deciding that the Regents have timely and properly served a complete, unredacted version of the Reyes Appendix.

As the public redacted version of the Reyes Appendix filed by the Regents on February 13, identifies exhibits numbered 1 through 9 only, the available information shows that the Reyes Motion to Seal also seeks to place under seal all of the exhibits submitted as a basis for adjudication of the Regents Reyes Motion, which include over 600 pages of material. (Lodged Reyes Appendix at pdf pp. 8-653.)

The Reyes Motion to Seal is also supported by a declaration of attorney Orozco which contains the same statements and representations as those contained in the declarations submitted in support of the Smith Motion to Seal and the Signa Motion to Seal further discussed above. The Reyes Motion to Seal and the notice of that motion are also identical or nearly identical to the Smith Motion to Seal and the Signa Motion to Seal, and include the same deficiencies further discussed above. In addition, the memorandum submitted in support of the Reyes Motion to Seal is identical or nearly identical to the memorandum submitted in support of the Smith Motion to Seal and the memorandum submitted in support of the Signa

Motion to Seal, and includes the same sole ground for issuance of an order placing under seal the exhibits attached to the Reyes Appendix. Therefore, the same reasoning and analysis apply here.

The public redacted version of the Reyes Appendix describes the exhibits to that document as (exhibit 1) "Collective Bargaining Agreement Between the Defendant and the Federated University Police Officers Association for the Period Between July 1, 2017 – December 31, 2020"; (exhibit 2) "Plaintiff's Complaint for Violations of the California Whistleblower Act and Labor Code section 1102.5, filed on May 17, 2019"; (exhibit 3) "Pertinent Pages from the Certified Copy of the Transcript of Plaintiff's Deposition, Taken on June 5, 2024"; (exhibit 4) "Plaintiff's Responses to Defendant's Requests for Production, Set One, dated August 12, 2021 and Pertinent Documents Produced by Plaintiff with its Response"; (exhibit 5) "Defendant's Supplemental Responses to Plaintiff's Requests for Production, Set One, Dated June 11, 2024 and Pertinent Documents Produced by Defendant with its Response"; (exhibit 6) "Defendant's Special Interrogatories, Set One"; (exhibit 7) "Plaintiff's Responses to Defendant's Special Interrogatories, Set One"; (exhibit 8) "Administrative Order 2/9/17-01"; and (exhibit 9) "Defendant's WPP That Took Effect on May 1, 2015". (Orozco Dec., exhibit 2 at pp. 4-5.)

As to exhibit 2 to the Reyes Appendix, which is also a pleading filed in the public record in 2019 without redaction, the same reasoning and analysis set forth above apply here. For the same reasons discussed above, the court will deny the Reyes Motion to Seal as to exhibit 2 to the Reyes Appendix.

As to exhibits 1 and 9 of the Reyes Appendix, the same reasoning and analysis in regard to exhibits 1, 4, and 23 of the Smith Amended Appendix apply here. For those same reasons, the court will deny the Reyes Motion to Seal as to exhibits 1 and 9 of the Reyes Appendix.

Exhibits 3, 4, 5, 6, and 7 of the Reyes Appendix are discovery materials which appear to have been generated during this litigation. For the same reasons further discussed above as to exhibits 11 through 16 and 22 of the Smith Amended Appendix, and considering that no written motion pursuant to Evidence Code section 1043 appears to have been filed with the court prior to obtaining the discovery reflected in exhibits 3 through 7 to the Reyes Appendix, the court will also deny the Reyes Motion to Seal as to those exhibits.

Apart from the general and conclusory points further discussed above, the Reyes Motion to Seal also presents no information, evidence, or reasoned argument explaining why exhibit 8 to the Reyes Appendix was maintained under any individual's name; contains the information enumerated in Penal Code section 832.8, subdivision (a); or was maintained by the Regents or UCSB-PD pursuant to Penal Code section 832.5. In addition, and based on the court's own review of exhibit 8, that document, on its face, does not appear to be a personnel record or a record maintained pursuant to Penal Code section 832.5.

For the same reasons discussed above, even if the Regents could provide information showing that exhibit 8 is subject to the confidentiality protections provided under Penal Code section 832.7, the Reyes Motion to Seal presents no reasoned argument identifying what, if any, information contained in exhibit 8 of the Reyes Appendix was obtained from the type of records described in that statute, or where that information appears. For these and all further reasons discussed above, the Reyes Motion to Seal also fails to show why exhibit 8 of the Reyes Appendix is, or must be kept, confidential under Penal Code section 832.7.

The Reyes Motion to Seal also fails to present any information, evidence, or reasoned argument showing the existence of an overriding interest that overcomes the right of public access to any of the exhibits attached to the Reyes Appendix; a substantial probability of prejudice if those exhibits are not sealed; or that the proposed sealing of the entirety of those exhibits is narrowly tailored. For these additional reasons, the court will deny the Reyes Motion to Seal as to exhibits 1 through 9 of the Reyes Appendix.

The reply of the Regents to Reyes' opposition to the Reyes Motion to Seal also states that, to the extent the court denies that motion, the Regents "request that the Court Order The Regents to publicly file the exhibits in support of [the Regents Reyes Motion] that are currently lodged with the Court...." (Reply at p. 4, ll. 13-15.) Therefore, and for the same reasons further discussed above, the court will order the Regents to file the Reyes Appendix lodged conditionally under seal on February 25,

unsealed and without any redactions to any exhibit or information contained in any exhibit.

(4) Little Motion to Seal

The Little Motion to Seal seeks to place under seal exhibits numbered 1 through 47 of the amended appendix of exhibits filed by the Regents on February 3, 2026, as a basis for adjudication of the Regents Little Motion as to the complaint filed by T Little (the T Little Amended Appendix), and exhibits numbered 1 through 41 of the amended appendix of evidence separately filed by the Regents on that same date in support of the Regents Little Motion as to the complaint filed by M Little (the M Little Amended Appendix). (Orozco Dec., ¶¶ 4-5.) Copies of the public redacted versions of the T Little Amended Appendix and the M Little Amended Appendix filed by the Regents on February 3, are attached to the supporting declaration of attorney Orozco. (Orozco Dec., exhibits 2 & 3.)

The court has no record showing that the Regents filed any appendix of evidence in support of the Regents Little Motion on February 3, 2026. Instead, court records reflect that on February 4, 2026, the Regents filed an amended appendix of evidence in support of the Regents Little Motion as against the M Little Complaint, which the court understands to be the M Little Amended Appendix described above, and an amended appendix of evidence in support of the Regents Little Motion as against the T Little Complaint, which court understands to be the T Little Amended Appendix referenced above. The present record also reflects that the Regents did not lodge complete, unredacted versions of the T Little Amended Appendix or the M Little Amended Appendix conditionally under seal until February 25, 2026, in the manner further discussed above.

In addition, and for the same reasons discussed above, the court understands the T Little Amended Appendix to supersede any prior version of that appendix filed by the Regents, and the M Little Amended Appendix to supersede any prior version of that appendix.

The Little Motion to Seal, including the notice and the separately filed declaration of attorney Orozco, is identical or nearly identical to the motions further discussed above, and advances the same sole ground for the issuance of an order placing under seal the exhibits submitted by the Regents as a basis for adjudication of the Regents Little Motion. Therefore, the same reasoning and analysis apply here.

For example, though the court's review of the exhibits attached to the lodged T Little Amended Appendix and M Little Amended Appendix shows that those exhibits consist of nearly 2,000 pages of material, wholly absent from the Little Motion to Seal is any information, evidence, or reasoned argument showing, on a point-by-point basis with appropriate citations to the record, why each exhibit or information contained in any exhibit is confidential or required to be kept confidential pursuant to Penal Code section 832.7. Instead, and in the same manner discussed above, the Regents has placed the burden on the court to review each page of those materials to determine whether any exhibit, in whole or in part, is confidential or required to be kept confidential under Penal Code section 832.7.

Though there exists, for all reasons discussed above, sufficient grounds to deny the Little Motion to Seal based on the failure by the Regents to meet its burden as to any of the exhibits attached to the T Little Amended Appendix or the M Little Amended Appendix, the court has conducted its own review of those exhibits.

Based on the court's review of the exhibits attached to the T Little Amended Appendix, and the allegations of the complaint filed in the public record of the Little Action which indicate that T Little remains employed with the UCSB-PD, it appears that exhibits 4, 6 through 13, 16 through 25, and 30 through 37 to the T Little Amended Appendix are personnel records for purposes of subdivision (a) of Penal Code section 832.8. As Penal Code section 832.7 provides that those personnel records are confidential and shall not be disclosed in this proceeding except by discovery pursuant to sections 1043 and 1046 of the Evidence Code (Pen. Code, § 832.7, subd. (a)), the court will grant the Little Motion to Seal as to exhibits 4, 6 through 13, 16 through 25, and 30 through 37 to the T Little Amended Appendix, only. For the same reasons discussed above, the court will deny the Little Motion to Seal as to exhibits 1 through 3, 5, 14, 15, 29, and 38 through 47 to the T Little Amended Appendix.

As to exhibits 26, 27, and 28, the public redacted version of the T Little Amended Appendix states that those exhibits, which are not included with the lodged unredacted version of that appendix, were “intentionally omitted”. (Orozco Dec., exhibit 2 at p. 7.) Therefore, the Little Motion to Seal is moot as to those exhibits.

In addition, and for the same or similar reasons discussed above, the court will grant the Little Motion to Seal as to exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29 to the M Little Amended Appendix, only. For those same reasons, and as available information and evidence indicates or suggests that documents dated or generated after March 20, 2020, are not files maintained in the name of a peace officer or records maintained pursuant to Penal Code section 832.5, the court will deny the Little Motion to Seal as to exhibits 1, 2, 6, 9, 10, 19, 20, 21, and 30 through 41 to the M Little Amended Appendix. The public redacted version of that appendix shows that exhibit 17 has been omitted by the Regents. (Orozco Dec., exhibit 3 at p. 7.)

In its reply to the opposition of M Little and T Little to the Little Motion to Seal, the Regents states: “Should the Court be inclined to deny [the Little Motion to Seal], The Regents respectfully request that the Court Order The Regents to publicly file the exhibits in support of [the Regents Little Motions] that are currently lodged with the Court....” (Reply at p. 4, ll. 21-25.)

For the same reasons discussed above, the court will order the Regents to file a public redacted version of the lodged T Little Amended Appendix, that includes redactions to exhibits 4, 6 through 13, 16 through 25, and 30 through 37, only. Further, the court will order the Regents to file a public redacted version of the lodged M Little Amended Appendix that redacts exhibits 3 through 5, 7, 8, 11 through 16, 18, and 22 through 29, only. No other exhibit to the T Little Amended Appendix or the M Little Amended Appendix, or material contained in any exhibit, apart from the exhibits described above, shall be redacted from the public versions of the T Little Amended Appendix or the M Little Amended Appendix.

(5) Stern Motion to Seal

The Stern Motion to Seal also seeks an order placing under seal all of the exhibits to an amended appendix of evidence (the Stern Amended Appendix) filed by the Regents in support of the Regents Stern Motion. The public redacted version of the Stern Amended Appendix was filed by the Regents on February 4, 2026. The Regents lodged the complete, unredacted version of the Stern Amended Appendix conditionally under seal on February 25, 2026, in the same manner described above. As to any prior version of the Stern Amended Appendix that was filed by the Regents in support of the Regents Stern Motion, including the appendix filed on January 22, 2026, the same reasoning and analysis apply.

The court's review of the lodged Stern Amended Appendix shows that its exhibits are numbered 1 through 16, and consist of over 800 pages of material. (Lodged Stern Amended Appendix at pdf pp. 9-834.) The Stern Motion to Seal and the separately filed supporting declaration of attorney Orozco, are identical in substance to the motions and declarations further described above, and advance the same sole ground for the issuance of an order placing under seal exhibits 1 through 16 of the Stern Amended Appendix. Therefore, the same reasoning and analysis apply.

Though the Stern Motion to Seal fails, for all reasons discussed above, to show why any exhibit, or information appearing in any exhibit, to the Stern Amended Appendix is confidential or required to be kept confidential under Penal Code section 832.7, the court has conducted its own review of those exhibits. Based on that review, and for the same reasons discussed above, the court will grant the Stern Motion to Seal as to exhibits 3, 4, 7 through 9, and 16 to the Stern Amended Appendix, only, and will otherwise deny that motion as to exhibits 1, 2, 5, 6, and 10 through 15.

In its reply to the opposition of Stern, the Regents states: “Should the Court be inclined to deny The Regents' motion to seal, The Regents respectfully request that the Court Order The Regents to publicly file the exhibits in support of [the Regents Stern Motion] that are currently lodged with the Court....” (Reply at p. 4, ll. 13-15.)

For the same reasons discussed above, the court will order the Regents to file a public redacted version of the lodged Stern Amended Appendix that redacts exhibits 3, 4, 7 through 9, and 16, only. No other exhibit to the Stern Amended Appendix, or material contained in any other exhibit, apart from the exhibits described above, shall be redacted from that public version of

the Stern Amended Appendix.

(6) Regents Smith Motion

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. [¶] A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(1)-(2).)

“The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).) The party moving for summary judgment “bears the burden of persuasion that there is no genuine issue of material fact and that he is entitled to judgment as a matter of law.” (Id. at p. 845.) Relevant here, a defendant meets that burden by showing “that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“In reviewing a defense summary judgment, we apply the traditional three-step analysis ..., that is, we (1) identify the pleaded issues, (2) determine if the defense has negated an element of the plaintiff’s case or established a complete defense, and if and only if so, (3) determine if the plaintiff has raised a triable issue of fact.” (Meddock v. County of Yolo (2013) 220 Cal.App.4th 170, 175, fn. omitted.)

The Regents Smith Motion seeks summary adjudication of 25 issues, which are set forth in the notice of that motion. (Notice at pp. 4-8.) The separate statement filed by the Regents in support of the Regents Smith Motion sets forth 133 material facts that, according to the Regents, relate to “all causes of action” asserted in the complaint filed by Smith and each issue that is the subject of the Regents Smith Motion, “and that could make a difference in the disposition of the motion.” (Cal. Rules of Court, rule 3.1350(a)(2); see also Sep. Stmt. at pp. 4-43.)

“ [T]he separate statement effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the Regents’] separate statement, the motion must be denied!’ [Citation.]” (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 252 (Nazir), original italics.)

The issues which are the subject of the Regents Smith Motion include that Smith “failed to exhaust his administrative remedies by filing a verified complaint with the Department of Fair Employment and Housing (“DFEH”) or the Equal Employment Opportunity Commission (“EEOC”) and obtaining a notice of right to sue.” (Notice at p. 6, ¶ 14; see also ¶ 15 [punctuation and capitalization unchanged]; Sep. Stmt. at p. 33, issue “F”; p. 36, issue “O”; p. 37, issues “R” & “S”; see also Memorandum at pp. 21-23 [asserting that that the evidence shows that Smith failed to exhaust administrative remedies].) The material facts that relate to that issue include that Smith “has not produced any evidence that he ever filed a complaint with the Department of Fair Employment and Housing ... or Equal Employment Opportunity Commission ... and received a right to sue letter before filing this action.” (Sep. Stmt., Undisputed Material Fact [UMF] no. 103.)

“A motion for summary judgment must be supported by evidence, and it is the moving party who bears the initial burden of producing evidence.” (Boyle v. CertainTeed Corp. (2006) 137 Cal.App.4th 645, 655.) “A burden of production entails only the presentation of ‘evidence.’ [Citation.]” (Aguilar, supra, 25 Cal.4th at p. 850.) Each of the material facts set forth in the Regents’ separate statement that the Regents contends are undisputed “shall be followed by a reference to the supporting evidence.” (Code Civ. Proc., § 437c, subd. (b)(1); see also subd. (f)(2) “[a] motion for summary judgment ... shall proceed in

all procedural respects as a motion for summary judgment”).)

The evidence referenced in the separate statement that supports the material fact set forth above includes the responses and supplemental responses of Smith to the Regents' set one special interrogatories and requests for production of documents. (Sep. Stmt., UMF no. 103 & evidence cited therein; Smith Amended Appendix, exhibits 13-16.)

“[S]ummary judgment law in California requires the defendant to present evidence, and not simply point out through argument, that the plaintiff does not possess and cannot reasonably obtain the needed evidence.” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110, original italics.) “The defendant may ... present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (*Aguilar, supra*, 25 Cal.4th at p. 855.)

Even if the Regents Smith Motion is sufficient to show that, on the date of the discovery responses on which the Regents rely to support the material fact stated above and set forth in the separate statement, Smith did not possess evidence regarding that material fact, the motion fails to present any information, evidence, or reasoned argument showing why Smith cannot reasonably obtain necessary evidence, any admissions by Smith during discovery, or that Smith has discovered nothing in regard to that material fact.

The Regents Smith Motion also concedes, for all reasons discussed above, that the following material facts relate to the causes of action and issues that are the subject of that motion: Smith “has not ... produced any evidence that any complaints by the individual defendants made against [Smith] ‘on or around May or June of 2017’ were made under oath or penalty of perjury[]”; Smith “has not established that any complaint of misconduct filed against him was accepted by UCSB-PD and involved a complaint...”; and Smith claims “with no evidence that ‘no investigation was ever conducted....” (Sep. Stmt., UMF nos. 108, 109, 111 & evidence cited therein.) The same reasoning and analysis applies to those material facts.

Because the Regents Smith Motion, for all reasons discussed above, does not show that Smith cannot reasonably obtain needed evidence in regard to the causes of action or issues that are the subject of that motion, the Regents has failed to meet its burden to show, with supporting evidence, that there is no genuine issue of material fact and that the Regents is entitled to judgment as a matter of law as to those causes of actions and issues.

The Regents Smith Motion also asserts that the alleged protected disclosures by Smith at issue in the Smith Action involve personnel matters and not protected whistleblowing. (Memorandum at pp. 25-26.) For this reason, the Regents argue, Smith cannot establish a violation of the California Whistleblower Protection Act (the Act).

The Act, codified as Government Code section 8547, et seq., “prohibits retaliation against state employees who ‘report waste, fraud, abuse of authority, violation of law, or threat to public health’ [Citation.] The Act authorizes ‘an action for damages’ to redress acts of retaliation. [Citation.]” (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 882.)

Pursuant to Government Code section 8547.2, a “protected disclosure” is “a good faith communication, including a communication based on, or when carrying out, job duties, that discloses or demonstrates an intention to disclose information that may evidence either of the following circumstances:

“(A) An improper governmental activity.

“(B) A condition that may significantly threaten the health or safety of employees or the public if the disclosure or intention to disclose was made for the purpose of remedying that condition.” (Gov. Code, § 8547.2, subd. (e)(1)(A), (B).)

Under Government Code section 8547.2, “[i]mproper governmental activity’ means an activity by a state agency or by an employee that is undertaken in the performance of the employee’s duties, undertaken inside a state office, or, if undertaken

outside a state office by the employee, directly relates to state government, whether or not that activity is within the scope of their employment, and that meets any of the following criteria:

“(A) The activity is in violation of any state or federal law or regulation, including, but not limited to, corruption, malfeasance, bribery, theft of government property, fraudulent claims, fraud, coercion, conversion, malicious prosecution, misuse of government property, misuse of state expenditures, including allocations, loans, or grants, or willful omission to perform duty.

“(B) The activity is in violation of an executive order of the Governor, a California Rule of Court, or any policy or procedure mandated by the State Administrative Manual or State Contracting Manual.

“(C) The activity is economically wasteful, involves gross misconduct, incompetency, or inefficiency.” (Gov. Code, § 8547.2, subd. (c)(1)(A)-(C).)

Relevant here, “any person who intentionally engages in acts of reprisal, retaliation, threats, coercion, or similar acts against a university employee, including an officer or faculty member, or applicant for employment for having made a protected disclosure shall be liable in an action for damages brought against him or her by the injured party.” (Gov. Code, § 8547.10, subd. (c).)

“Complaints made ‘in the context of internal administrative or personnel actions, rather than in the context of legal violations’ do not constitute protected whistleblowing. [Citations.] ‘To exalt these exclusively internal personnel disclosures with whistleblower status would create all sorts of mischief. Most damagingly, it would thrust the judiciary into micromanaging employment practices and create a legion of undeserving protected “whistleblowers” arising from the routine workings and communications of the job site.’ [Citation.]” (Levi v. Regents of University of California (2017) 15 Cal.App.5th 892, 904.)

The Regents do not dispute that the alleged protected disclosures at issue include or concern “how officers were handling sexual assault cases”, “one officer’s contact with sexual assault victims outside of assigned calls for service[]”, “misconduct by officer [Hashimoto] for creating inappropriate cartoon videos of ... University of California Santa Barbara officials, citizens and victims of crime[]”, and “another officer spending too much time at a student housing residence hall.” (Sep. Stmt., UMF nos. 34-39 & 43; Memorandum at p. 25.)

Apart from generally asserting, in a conclusory manner, that the alleged protected disclosure made by Smith concern or consist of internal administrative or personnel actions, the Regents Smith Motion fails to explain why the nature or subject of those concerns do not implicate any alleged abuse of authority, violations of law, or any threat to public health. Instead, a reasonable trier of fact could find, based on the material facts and evidence presented here, that the disclosures at issue implicate or concern improper activity for purposes of the Act, and that Smith’s communications regarding those concerns were made in good faith.

In addition, Smith presents evidence of reports made by Smith which Smith contends they reasonably believed constitute or concern unlawful or improper activity, including as to the matters described above and in the Regents’ separate statement. (See Resp. Sep. Stmt., Additional Material Fact no. 2; Smith Appendix of Evidence, exhibit A at p. 82, 95, 108, 109.) For these and all further reasons discussed above, the evidence and information presented here gives rise to competing inferences as to whether, based on the content or subject of the reports made by Smith, those disclosures are protected pursuant to the Act. “[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c).)

Furthermore, even if the Regents could meet its initial burden to show that any protected disclosures by Smith were not a contributing factor to any alleged acts of retaliation by the Regents against Smith, the available evidence and information is, for present purposes, sufficient to give rise to an inference of retaliation.

"Both direct and circumstantial evidence can be used to show an employer's intent to retaliate. 'Direct evidence of retaliation may consist of remarks made by decisionmakers displaying a retaliatory motive. [Citation.]' [Citation.] Circumstantial evidence typically relates to such factors as the plaintiff's job performance, the timing of events, and how the plaintiff was treated in comparison to other workers." (Colarossi v. Coty US Inc. (2002) 97 Cal.App.4th 1142, 1153.)

The parties do not dispute, or reasonably dispute, that Smith was placed on administrative leave on June 15, 2017. (Resp. Sep. Stmt., UMF no. 68 & evidence cited therein [not reasonably disputed on this point].) Considering the dates of the reports made by Smith disclosed by the Regents' supporting separate statement (see, e.g., Sep. Stmt., UMF nos. 43, 45, 57), and the timing of those reports in relation to the date Smith was placed on administrative leave, among other factors, a reasonable trier of fact could find, based on competing inferences that arise from the evidence and information presented by the parties and notwithstanding whether the Regents can show the existence of a legitimate reason to place Smith on leave or that its actions were justified, that there existed an intent to retaliate. (See Scheer v. Regents of the University of California (2022) 76 Cal.App.5th 904, 917–918 [general discussion].)

In evaluating the evidence presented by the parties on summary judgment, " '[w]e accept as true the facts ... in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them.' [Citation.] And we must 'view the evidence in the light most favorable to plaintiff[] ...' and 'liberally construe plaintiff[s] evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff[s] favor.' " (Nazir, supra, 178 Cal.App.4th at p. 254.) The court may not weigh the evidence to determine whose version is more likely true. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.)

Though the examples provided herein are intended to be illustrative and not exhaustive, for all reasons discussed above, the present record gives rise to conflicting or competing inferences including as to whether the reports made by Smith constitute protected disclosures pursuant to the Act, and whether the Regents intentionally engaged in any acts of retaliation against Smith based on those disclosures, and which raise a triable issue of material fact. For these reasons, the court will deny the Regents Smith Motion. (Code Civ. Proc., § 437c, subds. (c), (f)(1); Aguilar, supra, 25 Cal.4th at p. 845; Gov. Code, § 8547.10, subd. (e).)

The Regents' request for judicial notice:

The court will grant the request of the Regents for judicial notice of the complaint filed by Smith in the Smith Action. (Regents RJN, ¶ 1; Evid. Code, § 452, subd. (d)(1).)

Evidentiary objections:

In its reply to the opposition of Smith to the Regents Smith Motion, the Regents submit objections to material contained in Smith's declaration and the declaration of Smith's counsel, Peter Horton, submitted in support of Smith's opposition; and to exhibits H, K, O, and P to attorney Horton's declaration. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c, subd. (q).)

As the Regents Smith Motion fails, for all reasons discussed above, to shift the burden to Smith, the court need not consider the evidentiary objections raised by the Regents. Even if the burden shifted to Smith to raise a triable issue of fact, the court does not deem the evidence to which the Regents have raised objections to be material to its disposition of the Regents Smith Motion under the circumstances present here.

Smith's notice of new authority and additional evidence or, in the alternative, request to continue hearing:

Court records reflect that on May 13, 2026, Smith filed a notice of new authority and additional evidence, or in the alternative, request to continue the hearing on the Regents Smith Motion. As the court will deny that motion for all reasons discussed

herein, it is not necessary for the court to consider Smith's notice and request.

(7) Motion to Consolidate

The Motion to Consolidate is brought pursuant to Code of Civil Procedure section 1048, subdivision (a), which provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a); see Notice of Motion to Consolidate at p. 1, ll. 7-11.)

In support of the Motion to Consolidate, Plaintiffs' counsel, Jaime Keeton, states that the Actions involve overlapping parties, witnesses, documentary evidence, legal claims, and factual allegations that arise from alleged retaliation within the UCSB-PD, and that multiple supervisory personnel identified in the Actions overlap across the cases, including Olson, Millard, Gregory Smorodinsky (Smorodinsky), Robert Romero (Romero), Cathy Farley (Farley), and Gregory Pierce (Pierce). (Keeton Dec., ¶¶ 2-9.) It is attorney Keeton's professional judgment that separate trials would require substantial duplication of witness testimony, documentary evidence, expert testimony, motion practice, and court resources, and would create a risk of inconsistent factual findings and verdicts. (Keeton Dec., ¶ 16.) Attorney Keeton asserts that consolidation for all purposes, including trial, would promote judicial economy and avoid unnecessary costs and delay. (Keeton Dec., ¶ 17.)

Attorney Keeton further states that, at the trial confirmation conference held on August 8, 2025, the parties discussed that the related actions might be subject to consolidation for trial. (Keeton Dec., ¶ 11.) On May 6, 2026, attorney Keeton emailed defense counsel regarding consolidation of the Actions for trial. (Keeton Dec., ¶ 12 & exhibit A.) Defense counsel did not respond. (Keeton Dec., ¶ 12.)

On May 14, 2026, attorney Keeton sent follow-up correspondence to defense counsel regarding consolidation. (Keeton Dec., ¶ 13 & exhibit B.) On May 14, 2026, attorney Daphne Anneet responded, stating that defendants were "adamantly opposed" to consolidation for trial and that consolidation would create prejudice and confusion. (Keeton Dec., ¶ 14 & exhibit C.)

In the memorandum submitted in support of the Motion to Consolidate, Plaintiffs assert that the Actions were each brought by a current or former officer of the UCSB-PD; that each of the Actions asserts claims for violations of the Act and Labor Code section 1102.5; that the Actions each name the Regents as the primary defendant; and that the Actions arise from a common pattern of alleged institutional retaliation wherein each of the Plaintiffs reported misconduct by the same supervisory personnel within UCSB-PD, and thereafter suffered adverse employment actions.

Plaintiffs also assert that Olson is a defendant in the Signa Action; Millard is a defendant in the Little, Reyes, and Stern Actions; Smorodinsky is a defendant in the Little and Reyes Actions; Romero, Farley, and Pierce are defendants in the Little Action; that those individuals served in the same supervisory hierarchy at UCSB-PD during the same period of time; and that those individuals will be witnesses in all four trials regardless of the manner in which the Actions are structured.

The common questions of fact claimed by Plaintiffs concern the policies, practices, and culture of the UCSB-PD during the relevant period; the roles and conduct of its supervisory personnel including Olson, Millard, Smorodinsky, Romero, Farley, and Pierce; the pattern of UCSB-PD management responses to officers' reports of misconduct; the alleged adverse employment actions taken against each of the Plaintiffs; and the causal connection between Plaintiffs' protected disclosures and those adverse actions. Plaintiffs assert that the common questions of law include the elements of a cause of action under the Act and Labor Code section 1102.5; what constitutes a protected disclosure under each of those statutes; causation standards; and the defenses available to the Regents as a public employer. Plaintiffs assert that those questions and issues are identical in all four cases.

Plaintiffs further assert that, if the Actions are not consolidated for trial, the same institutional witnesses would testify in four separate proceedings and cover the same ground; the same documentary evidence would be authenticated and admitted repeatedly; the same expert witnesses would appear multiple times; and the same attorneys would appear for the same

parties in four proceedings, resulting in waste and the possibility of inconsistent adjudications and verdicts if the Actions were tried separately.

In its opposition to the Motion to Consolidate, the Regents asserts that the Actions involve or arise from distinct and different factual circumstances concerning alleged protected disclosures, adverse employment actions, decisionmakers, timelines, and retaliatory conduct such that liability in each case will require each of the Plaintiffs to independently establish the elements of their claims, and individualized determinations and matters of proof concerning the protected activity at issue, causation, and whether there exist legitimate reasons justify each decision at issue. The Regents further assert that, because Signa was a member of the supervisory hierarch at the UCSB-PD, consolidation will place the factual and legal arguments in opposition, requiring the Regents to respond concurrently to allegations made by and against the UCSB-PD leadership team.

The Regents further asserts that consolidation would create substantial jury confusion and trial management issues, because the jury would be required to simultaneously evaluate multiple plaintiffs and defendants, different alleged protected disclosures and employment actions, separate timelines, and distinct damage claims. Because several individual defendants are named in some actions but not others, the Regents contends, there exists a substantial risk that the evidence could improperly influence the jury's consideration of unrelated claims. For those reasons, the Regents argues, consolidation would increase the burdens, complexities, and length of trial, and complicate trial administration.

In addition, the Regents contend that, because Plaintiffs did not raise the issue of consolidation until May 2026, after the close of discovery, the Regents will suffer prejudice if the Actions are consolidated because its trial preparation is well underway, and because the Regents will be required to restructure or begin anew its trial preparation and strategies in the weeks before trial.

The Regents further contend that the Motion to Consolidate is untimely, that Plaintiffs have failed to explain the delay in filing that motion, and that the Actions are subject to mandatory dismissal which the Regents will address in a separate motion to dismiss the Actions.

"Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only." (Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1149.) "[T]he question of consolidation should be submitted to the court's discretion." (Sales Dimensions v. Superior Court (1979) 90 Cal.App.3d 757, 764.)

The court's review of the pleadings filed in each of the Actions shows that Plaintiffs each assert similar allegations regarding the hierarchy of the UCSB-PD during relevant times, including as to the identity of each supervisor of Plaintiffs, and the relationship between the individuals within UCSB-PD. Those pleadings also include similar allegations in regard to the conduct of Plaintiffs, Olson, Millard, Farley, and Romero, among others, during relevant times; the complaints or reports made by Plaintiffs and the involvement of the individuals identified above in response to those alleged complaints or reports; whether the conduct of each of the Plaintiffs constitutes protected activity for purposes of the Act; and whether any conduct by the Regents or UCSB-PD constitutes retaliation under the Act as to each of the Plaintiffs; among other things. If the allegations of Plaintiffs' respective pleadings are proven, the Motion to Consolidate is sufficient to show the existence of predominant and significant threshold questions of fact regarding the matters further described above, which are common to the Actions.

The available information and evidence, including the court's own records, also show that the pleadings filed by each of the Plaintiffs assert the same causes of action for violation of the Act and of Labor Code section 1102.5.

Furthermore, the present record shows or suggests that if separate trials of the Actions are conducted, the same witnesses, including experts, would testify regarding the matters described above, the same deposition testimony would be introduced regarding those matters, and the same or similar evidence would be presented by the parties. There also exists a possibility of inconsistent rulings regarding the matters, issues, and claims described above. For these reasons, the court finds that consolidation of the Actions for trial would enhance efficiency and avoid inconsistent adjudications. (See Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48 Cal.App.4th 976, 978-980 (Todd-Stenberg).)

As to the Regents' assertion that the Motion to Consolidate is untimely, the Regents do not present any legal authority which prescribes any deadline for ordering consolidation, or showing why a case may not be consolidated on the eve of trial, as the Regents contend. The court is also unaware of any such legal authority. Instead, Plaintiffs are only required to show that the Actions involve "a common question of law or fact...." (Code Civ. Proc., § 1048, subd. (a).)

Moreover, and as briefly noted above, court records reflect that the Regents filed a motion for an order transferring and consolidating the Actions for pretrial purposes (the Regents Motion) on July 8, 2021, which the court granted on September 17, 2021. In the Regents Motion, which was also brought pursuant to subdivision (a) of Code of Civil Procedure section 1048, the Regents argued that the Actions "clearly meet" the requirement that the matters "share a common question of fact or law." (July 8, 2021, Motion at p. 17, ll. 11-13.)

In support of the Regents Motion, the Regents represented to the court, among other things, that the Actions "involve some combination of the same individuals (including parties and witnesses), all of whom are or were employed as police officers at UCSB by The Regents, including but not limited to Signa, Olson, Smith, Millard, Romero, Savaglio, Rothermel, the Littles, Siegel, Farley, Pierce, Smorodinsky, Stern, Reyes, Sheehey, and Hashimoto[]"; that the Regents "is a named defendant in all six actions, Olson is a defendant in three, Millard is a defendant in three, Smorodinsky is a defendant in two, and Signa, the Littles, and Hashimoto are all defendants in one case"; that "Plaintiffs allege that one or more other officers, including some of the other Plaintiffs, committed various forms of misconduct, and that all of them experienced retaliation as a result; that the Actions "allege employment claims" against the Regents and "will almost certainly share many of the same legal issues[]"; and that the existence of the same factual questions means that the court "will have to issue rulings on many of the exact same or similar legal issues" such that consolidation "will assure that the Court's rulings are consistent across all" of the Actions. (July 8, 2021, Motion at p. 9, ll. 4-7; p. 17, l. 14-p. 18, l. 1; p. 18, ll. 9-11; p. 20, ll. 5-8.) Those points are similar to, if not the same as, those advanced in the present Motion to Consolidate.

Though the court recognizes that the Regents Motion sought an order consolidating the Actions for pretrial purposes only, wholly absent from the opposition of the Regents to the present Motion to Consolidate is any information or evidence showing what, if any, of the common questions of law, fact, or circumstances described in the Regents Motion have changed, or why there no longer exist any common questions of law or fact. Furthermore, the Regents Motion and the present opposition of the Regents rely on the matters "alleged" by Plaintiffs in the Actions to argue different points. (See, e.g., Opp. at p. 5, ll. 15-19; p. 9, ll. 5-8; p. 11, ll. 6-8 & 11-20.)

In addition, and as noted in the court's May 15, 2026, minute order, the Regent's counsel informed the court at the August 8, 2025, trial confirmation conference held in this case, that they have contemplated consolidating the cases in which Plaintiffs are represented by the DRE law firm. (See also Aug. 8, 2025, Minute Order.) The present record reflects that Signa, T Little, M Little, Reyes, and Stern are represented by that law firm. Based on the parties' agreement, the court set the Signa Action for a 15 day jury trial to commence on June 18, 2026, without any objection by the Regents, and noted that the time estimate for trial of that action and "those considered in consolidation" is 15 days. (Ibid.) For these and all further reasons discussed above, the court questions the present assertion by the Regents that the Actions are different and distinct.

Even if the Regents could present information or evidence showing that the common questions of law or fact pending before the court as of the filing of the Regents Motion have changed, "[t]he fact that evidence in the one case might not [be] admissible in the other does not bar a consolidation. [Citation.] Nor does the fact that all the parties are not the same." (Jud Whitehead Heater Co. v. Obler (1952) 111 Cal.App.2d 861, 867.)

The court also notes that the Actions involve only four plaintiffs, and will require four separate trials. Even if the court were to credit the Regents' assertion that Plaintiffs' respective claims each require individualized proof regarding the alleged protected disclosures, adverse employment actions, or involved supervisors, the opposition of the Regents does not explain why the same deposition testimony would not be introduced, why the same expert witnesses would not be called, or why the same evidence would not be presented. (See Todd-Stenberg, supra, 48 Cal.App.4th at p. 979.)

The opposition of the Regents also does not explain why the jury cannot be provided with "a separate binder of evidence and separate chronologies prepared on each plaintiff." (Todd-Stenberg, supra, 48 Cal.App.4th at p. 980.) The opposition also

does not show why the preparation of appropriate jury instructions would be insufficient to cure any potential prejudice or avoid misleading the jury. (See, e.g., *Pilliod v. Monsanto Co.* (2021) 67 Cal.App.5th 591, 637 [general discussion]; *Shivers v. Van Loben Sels* (1952) 109 Cal.App.2d 286, 290 [noting that “the principles of law applicable to each of the consolidated cases could well have been stated in a few, simple, readily understandable instructions.”].) For these and all further reasons discussed above, the court is not persuaded that consolidation of the Actions for trial will confuse each of the cases or the jury. (Todd-Stenberg, *supra*, 48 Cal.App.4th at p. 980.)

The Regents also fail to explain why any prejudice that may arise from its engagement in another trial is peculiar or different from the typical circumstances which routinely arise in litigation, generally, or why the Regents must prepare its present witness examinations, evidentiary objections, pretrial motions, exhibit designations, or trial themes “anew”. (See also *Los Angeles City High School Dist. of Los Angeles County v. Swensen* (1964) 226 Cal.App.2d 574, 583 [finding no abuse of discretion notwithstanding claim of prejudice].)

As to the assertion that the Actions are subject to mandatory dismissal pursuant to Code of Civil Procedure sections 583.310 and 583.360, the court will determine that issue upon the filing and service of an appropriate motion by the Regents.

The remaining arguments advanced by the Regents do not persuade the court that consolidation of the Actions for trial is not appropriate or warranted under the circumstances present here. Instead, the court finds that for all reasons discussed above, consolidation is warranted.

For all reasons discussed above, the present record is sufficient to show that the Actions involve common questions of fact and law. For these reasons, and to avoid inconsistent results, unnecessary costs and delay resulting from the introduction of the same evidence, and promote the efficient use of judicial resources, the court will grant the Motion to Consolidate, and order the Actions consolidated for purposes of trial, with the Signa Action designated as the lead case. All documents filed in the consolidated matters shall be filed in the lead case.

Noted above, a 15 day jury trial is set to commence in the Signa Action on June 18, 2026. The court will order the parties to appear at the hearing to discuss future proceedings.

Judges

Judge Donna D. Geck

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